

SANCTIONING PROCEDURE RESOLUTION

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on May 9, 2022. The complaint is directed against AYUNTAMIENTO DE JEREZ DE LOS CABALLEROS with NIF P0607000G (hereinafter the City Council). The reasons for the complaint are as follows:

The complainant indicates that on September 15, 2021, he filed a complaint with the Court of Auditors against the City Council, stating that the entity complained against had made undue payments to several councilors.

In the Plenary held on January 31, 2022, councilor D^a B.B.B. stated that, as a result of the complaint filed by the complainant (providing his name and both surnames) before the Court of Auditors, there are personnel in the city council who are experiencing health and professional problems.

According to the complainant, the aforementioned councilor has never held any responsibilities regarding the payment of salaries, intervention, treasury, remuneration to councilors, attendance at Government Boards, or anything related to the verifications being carried out by the Court of Auditors, which is why access to such documentation would not be covered by her status as a councilor.

The complainant believes that the data from the file has been unlawfully provided to the councilor. In this regard, he indicates that he has never authorized the transfer of his data. Furthermore, he states that, in his case, before allowing access to the file, he should have been informed of the request made so that he could make allegations regarding it, especially since he should expressly authorize access to it.

However, he notes that there is no record of the councilor having requested access to the file.

He indicates that the same facts described in the complaint were raised before the Data Protection Delegate of the City Council, through a letter submitted on March 7, 2022, at the electronic headquarters of the entity complained against, without having received any response.

Along with the complaint, he provides:

- A link to the YouTube platform that allows access to the recording of the plenary session in which the statements mentioned in the complaint were made.
- A copy of the registered letter in which he communicates the facts to the Data Protection Delegate.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter LOPDGDD), the complaint was forwarded to the City Council for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on June 13, 2022, as evidenced by the acknowledgment of receipt in the file.

No response has been received to this forwarding letter.

THIRD: On August 8, 2022, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: On July 20, 2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the entity complained against, for the alleged infringement of Articles 5.1.f) and 32 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), classified in Articles 83.4 and 83.5 of the GDPR.

FIFTH: After notifying the aforementioned initiation agreement in accordance with the rules established in the LPACAP, the entity complained against submitted a written statement in which, in summary, it expressed the following:

The City Council argues that the statements made by the City Councilor are framed within a political context of transparency in administrative management, through which the Corporation provided all

information regarding the accounts and particular situations concerning the local budgets at that time, including the complaint filed by Mr. A.A.A.

In this regard, the City Council recalls that the debates of the municipal Plenary are public by virtue of the provisions of Law 7/1985, regulating the Bases of Local Regime (LrBRL), whose Article 70.1 states that “the sessions of the Plenary of local corporations are public. However, the debate and voting on those matters that may affect the fundamental right of citizens referred to in Article 18.1 of the Constitution may be secret, when agreed by an absolute majority.” In this case, the right to honor, personal and family privacy, and one's own image of any person was not affected, nor was the secrecy of the debate and voting agreed upon by an absolute majority.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

3/17

The City Council also points out that Article 69.1 of the LrBRL clearly establishes that “local Corporations shall provide the broadest information about their activities and the participation of all citizens in local life.” In this regard, it is considered that the Councilor's mentions of the complaint and the identity of the complainant (who is, after all, a neighbor actively participating in local politics through claims, complaints, and other means, exercising their rights as a citizen of Jerez de los Caballeros) fall within the legal framework in this specific case, since what was intended to be expressed with the statements mentioning the identity of the person who is now filing their complaint with the AEPD is that there was a specific situation among the City Council staff caused by a specific complaint that, in turn, had been made by a specific person, thus eliminating other possibilities or speculations in the pursuit of the greatest information and detail in municipal actions and situations, and seeking, in any case, the greatest transparency and common good while defending the integrity of the municipal Corporation as a whole.

The City Council asserts that since the debate and plenary votes were held during the COVID-19 pandemic that ravaged our country, the City Council, in pursuit of greater transparency and citizen participation, decided to broadcast the Plenary Sessions via a system known as streaming, disseminating their content both in real-time and subsequently, making it available for consultation by any person thereafter.

The City Council therefore estimates that the alleged complaint does not constitute a violation of the principles regarding the security and confidentiality of information set forth in the GDPR and the LOPDGDD, nor, consequently, are we facing a breach of confidentiality, but rather the factual situation should be interpreted in light of the municipal principles of action contained in the laws regulating local Administrations, transparency regulations, and citizen participation.

The City Council indicates that a balancing judgment may be made that weighs the obligations of local Corporations regarding transparency in the exercise of their activities, on one hand, and on the other hand, the privacy rights of the complainant and other individuals who are part of the citizenry. However, in this balancing judgment, in this precise case, the specific situation of the complainant must be included as one of the weights on the scale, as they have a fairly extensive history of participation in public affairs of the City Council and have interacted with the Corporation through the submission of numerous claims and complaints regarding municipal budgets and other financial and local matters. Therefore, they are not an unknown or anonymous citizen whose identity has been revealed arbitrarily or in vain.

The City Council acknowledges that, regarding the exercise of their rights, it is true that the City Council, due to an administrative error caused by various interim situations, did not respond in a timely manner to the interested party regarding their request, despite the existence of a report from the Data Protection Delegate (DPD) in this regard. Furthermore, at the indication of the DPD, the City Council will adopt the following provisional or definitive measures:

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

- Provisional withdrawal of the plenary broadcast until the resolution of the sanctioning procedure by the AEPD occurs. Once the resolution of the case is made, a decision will be adopted that best aligns with what is established by the AEPD, either the withdrawal or deletion of personal data or its maintenance.
- Implementation of a protocol of action for the Councilors of the Corporation for their statements in the Plenary and in other public spaces in order to avoid possible errors or breaches of confidentiality.
- Establish better and more secure mechanisms between the City Council and the Provincial Council, which exercises the functions of DPD.

SIXTH: On June 14, 2024, a proposal for resolution was made, in which a response was given to the allegations presented, a period of ten days was granted for the submission of allegations, and it was proposed that it be declared that the CITY COUNCIL OF JEREZ DE LOS CABALLEROS, with NIF P0607000G, has infringed the provisions of Article 5.1.f) of the GDPR and Article 32 of the GDPR, classified, respectively, in Articles 83.4 and 83.5 of the GDPR.

SEVENTH: The proposal for resolution was duly notified in accordance with the rules established in the LPACAP on June 17, 2024, without having received allegations from the City Council after the period granted for that purpose had elapsed.

From the actions carried out in the present procedure and from the documentation in the file, the following has been accredited:

PROVEN FACTS

FIRST: During the ordinary plenary session of the City Council of Jerez de los Caballeros, held on January 31, 2022, a councilor stated the following:

"It is sad to say that there are staff from the city council at this moment who have health problems precisely due to a series of attitudes maintained by the opposition along with A.A.A., which has reported the City Council to the Court of Accounts. And that there are professionals who are still involved precisely because of this complaint. I anticipate that there are people who are having a hard time precisely because of this degree of pressure and excessive scrutiny that, in my opinion, seeks to paralyze the City Council."

(4:00:11- 4:00:53)

SECOND: Said plenary session was conducted via videoconference and is fully published on the internet, on the YouTube platform, on the "RTV JEREZ" channel, from the date it took place.

THIRD: As of June 14, 2024, it is verified that it remains published and accessible in its entirety, as has been confirmed by a formal diligence carried out by the Instructor on that date.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of the GDPR, and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In the present case, in accordance with the provisions of Article 4.1 of the GDPR, there is evidence of

the processing of personal data, since the City Council, among other processes, collects, records, organizes, structures, conserves, uses, accesses, etc., the following personal data of individuals, such as: name and surname, identification number, contact details, employment data, remuneration data, etc.

The City Council carries out this activity in its capacity as the data controller, as it is the one who determines the purposes and means of such activity, by virtue of Article 4.7 of the GDPR.

Article 4, paragraph 12 of the GDPR broadly defines “personal data security breaches” (hereinafter security breach) as “all breaches of security that result in the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or unauthorized communication or access to such data.”

In this case, there is a personal data security breach under the circumstances indicated above, categorized as a confidentiality breach, as personal data has been exposed or communicated without authorization.

Within the principles of processing provided for in Article 5 of the GDPR, the integrity and confidentiality of personal data is guaranteed in paragraph 1.f) of Article 5 of the GDPR. For its part, the security of personal data is regulated in Articles 32, 33, and 34 of the GDPR, which govern the security of processing, the notification of a personal data security breach to the supervisory authority, as well as the communication to the data subject, respectively.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

6/17

III

Allegations to the initiation agreement

Before addressing the allegations made, it is appropriate to make a special reference to the nature of the position of the person who has drafted and signed the aforementioned written allegations. As observed in that document, the allegations have been prepared and electronically signed by the unit of TRANSPARENCY, CITIZEN PARTICIPATION, QUALITY, AND CITIZEN ATTENTION of the DIPUTACION DE BADAJOZ, which is the Data Protection Officer designated for the City Council of Jerez de los Caballeros and not by the data controller. This fact necessitates a brief reminder of the different functions and roles that the GDPR attributes to both figures.

Thus, Article 4, point 7 of the GDPR defines the “data controller” or “controller” as “the natural or legal person, public authority, service, or other body that, alone or jointly with others, determines the purposes and means of the processing; where the law of the Union or of the Member States determines the purposes and means of the processing, the controller or the specific criteria for its designation may be provided by the law of the Union or of the Member States.”

On the other hand, the figure of the Data Protection Officer (hereinafter DPO) is regulated in Section IV of Chapter IV of the GDPR (Article 37 et seq.) as well as in Chapter III of Title V of the LOPDGDD (Articles 34 to 37). The preamble of this latter regulation emphasizes the significant importance of this figure, both in the GDPR and in the organic law itself, which is based on the principle that it may have a mandatory or voluntary nature, be integrated or not into the organization of the controller or processor, and be either a natural person or a legal entity.

In the case of a City Council, its existence is necessary, as established by Article 37.1 when it indicates that “The controller and the processor shall designate a data protection officer whenever: a) the processing is carried out by a public authority or body, except for courts acting in their judicial capacity.”

Allowing, in its paragraph 3, that: “When the controller or the processor is a public authority or body, a single data protection officer may be designated for several of these authorities or bodies, taking into account their organizational structure and size.”

Recital 97 of the GDPR states, in fine, that “...Such data protection officers, whether or not they are employees of the controller, must be in a position to perform their functions and tasks independently.” Among the functions of the DPO, as stated in Article 39 of the GDPR, is to inform and advise the

controller or the processor and the employees who handle the processing of their obligations, supervise compliance with the provisions of the GDPR, other data protection provisions of the Union or of the Member States, and the policies of the controller or the processor.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
7/17

responsible for processing personal data, as well as cooperating with the Data Protection Authorities. The nature of the DPO implies a special autonomy and independence regarding the data controller, as established in both Article 38.6 of the GDPR and Article 36 of the LOPDGD, since it is imperative to “guarantee the independence of the data protection officer within the organization, avoiding any conflict of interest.”

On the other hand, regarding the submission of allegations in a sanctioning procedure, it must be taken into account that, as provided in Article 5.2 of the GDPR, it is the data controller who must guarantee and demonstrate compliance with the obligations required by the article.

Considering the aforementioned provisions, it must be the data controller who, in the case of the present sanctioning procedure, presents the allegations deemed appropriate against the initiation agreement in order to prove compliance with the regulations. Conversely, the submission of such allegations by the DPO on behalf of the accused party could lead to a conflict of interest, as it affects the special autonomy and independence referred to earlier. If the DPO assumes the defense of the controller in a sanctioning procedure, their independence is compromised, as in such a case they are acting in the interest of the controller and not in their neutral role of supervision. Therefore, allowing or assigning a DPO to defend in sanctioning procedures regarding data protection implies an interference in their functions, generating, as noted, a potential conflict of interest.

However, regarding the relevance of the allegations presented, by virtue of the principle in dubio pro actione and in order to avoid any type of defenselessness for the accused party, it is deemed appropriate to assess the allegations presented, without prejudice to any subsequent ones that may be formulated during the hearing process that follows this proposal for resolution.

In response to the allegations presented, the following should be noted:

First:

The City Council alleges that the statements made by a councilor during one of the Plenary sessions are framed within a political context of transparency in administrative management, through which the Corporation provided all information regarding the accounts and specific situations concerning the local budgets at that time, including the complaint filed by the now complainant. In this regard, the City Council recalls that the debates of the municipal Plenary are public, in accordance with Law 7/1985, regulating the Bases of the Local Regime (LRBRL).

Furthermore, the City Council argues that the mentions made by the Councilor regarding the complaint and the identity of the now complainant fall within the legal framework in this specific case, because what was intended to be expressed is that there was a specific situation among the City Council staff caused by a specific complaint, all in accordance with Article 69.1 LRBRL, which states that “The

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
8/17

Local corporations will provide the broadest information about their activities and the participation of all citizens in local life.”

In this regard, it should be noted that there is no question that the debates of municipal plenary sessions are public, nor that to fulfill the obligation of transparency, information about the activity of the local corporation is provided in order to promote the broadest citizen participation in municipal affairs. However, in the present case, it is established that the ordinary Plenary of the City Council of January 31, 2021, is published on the internet, on the “RTV Jerez” channel, on the YouTube platform, during

which a councilor of the same, when providing information about a complaint against the City Council filed by a neighbor with the Court of Auditors, indicates the specific identity of said complaining neighbor (name and two surnames), who is now the claimant.

In this sense, it is emphasized that it is not at all necessary, in the specific case at hand, to disseminate the name and surnames of the particular person - a neighbor of the locality - who has filed a complaint against the City Council with the Court of Auditors. The regulations indicated by the City Council neither allow nor require that to satisfy the purposes of transparency and information in local activity, as well as for citizen participation in municipal affairs, the dissemination of the specific identity of the person who has filed a complaint against the City Council is essential.

For these purposes, the public interest in the transparency of public affairs (in this case, municipal) is defined in the Preamble of Law 19/2013, of December 9, on transparency, access to public information, and good governance (LTAIBG), which begins by recalling that "Transparency, access to public information, and good governance standards must be the fundamental axes of all political action. Only when the actions of public officials are subject to scrutiny, when citizens can know how decisions that affect them are made, how public funds are managed, or under what criteria our institutions act, can we speak of the beginning of a process in which public powers begin to respond to a society that is critical, demanding, and that demands participation from public powers."

Thus, the purpose of the transparency regulations as expressed in the LTAIBG - which, in any case, must be harmonized with respect to what is established by the GDPR and the LOPDGD - is to allow individuals to know the mechanisms involved in the decision-making processes by public powers, as well as the use they make of budgetary funds, thereby ensuring citizen participation in public affairs through a better understanding of the actions of the State.

Therefore, in general terms, it should be understood that, as long as access to information contributes to a better understanding of the criteria for the organization and functioning of institutions or the allocation of resources, the existence of a public interest prevailing over the rights to data protection and privacy should be considered under the terms and with the exceptions established by the LTAIBG. Conversely, when the information does not contribute to a greater...

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

9/17

knowledge of the organization and functioning of the institutions or the allocation of public resources, the respect for the rights to data protection or privacy shall prevail.

Applying this criterion to the present case, it is considered that unnecessary data was disclosed in relation to the purpose of the processing - transparency and citizen participation - since the identity of the specific complainant is not relevant for achieving those objectives, as they can be fulfilled by omitting that information. On the other hand, knowledge of this information by third parties could generate risks to the rights and freedoms of the complainant, by allowing the fact that he is the one who has reported the City Council to be known by the rest of the neighbors in the municipality - and by any person, at any time and from any place, as it is published on the internet.

Therefore, it is emphasized that the knowledge of the specific identity of the complainant is not relevant for the purposes of achieving the public interest objective in transparency and citizen participation in public affairs, and thus is not strictly necessary to achieve that purpose.

Regarding the statement made by the City Council that, following the indication of the DPD, it would adopt certain measures, including the provisional withdrawal of the plenary broadcast until the resolution of the present sanctioning procedure occurs, it is noted that this plenary session is still currently published and accessible on the "RTV Jerez" channel of the YouTube platform, on the internet.

IV

Article 5.1.f) of the GDPR

Article 5.1.f) "Principles relating to processing" of the GDPR states:

"1. Personal data shall be:

(...)

f) processed in a manner that ensures appropriate security of the personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction or damage, by means of appropriate technical or organizational measures ('integrity and confidentiality')."

For its part, Article 5 of the LOPDGDD, Duty of confidentiality, states the following:

"1. The data controllers and processors, as well as all persons involved in any phase of this, shall be subject to the duty of confidentiality referred to in Article 5.1.f) of Regulation (EU) 2016/679.

2. The general obligation indicated in the previous section shall be complementary to the professional secrecy duties in accordance with the applicable regulations.

3. The obligations established in the previous sections shall remain in effect even after the relationship of the obligated party with the controller or processor has ended."

In the present case, there has been an unauthorized communication of personal data of the complainant related to the filing of a complaint before the Court of Auditors.

Therefore, there has been unauthorized or unlawful access by third parties to personal data. This constitutes a violation of the obligation to ensure the confidentiality of the data, highlighting a failure to comply with the obligation to process them in such a way as to ensure appropriate security of personal data, including protection against unauthorized or unlawful processing.

For all the above reasons and in accordance with the evidence available, it is considered that the known facts constitute an infringement, attributable to the City Council, for violation of Article 5.1.f) of the GDPR.

V

Classification of the infringement of Article 5.1.f) of the GDPR

The aforementioned infringement of Article 5.1.f) of the GDPR constitutes the commission of the infringements classified in Article 83.5 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" provides:

"Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to 4% at most of the total annual global turnover of the previous financial year, opting for the higher amount:

a) The basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...)"

In this regard, the LOPDGDD, in its Article 71 "Infringements" establishes that "Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements."

For the purposes of the statute of limitations, Article 72 "Infringements considered very serious" of the LOPDGDD indicates:

"1. Based on what is established in Article 83.5 of Regulation (EU) 2016/679, infringements that constitute a substantial violation of the articles mentioned therein are considered very serious and shall be subject to a three-year statute of limitations, particularly the following:

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

11/17

a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679. (...)"

VI

Proposal for sanction for the infringement of Article 5.1(f) of the GDPR

Without prejudice to the provisions of Article 83.5 of the GDPR, the aforementioned article provides in its paragraph 7 the following:

"7. Without prejudice to the corrective powers of the supervisory authorities under Article 58, paragraph 2, each Member State may establish rules on whether and to what extent administrative fines may be imposed on authorities and public bodies established in that Member State."

For its part, Article 77 “Applicable regime for certain categories of controllers or processors” of the LOPDGDD provides the following:

“1. The regime established in this article shall apply to the processing for which the following are responsible or act as processors:

c) The General Administration of the State, the Administrations of the autonomous communities, and the entities that make up the Local Administration.

2. When the controllers or processors listed in paragraph 1 commit any of the infringements referred to in Articles 72 to 74 of this organic law, the competent data protection authority shall issue a resolution declaring the infringement and establishing, where appropriate, the measures that should be adopted to cease the conduct or correct the effects of the infringement that has been committed, except for that provided for in Article 58.2(i) of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016.

The resolution shall be notified to the controller or processor, to the body to which it hierarchically depends, where applicable, and to the affected parties who had the status of interested parties, where applicable.

3. Without prejudice to what is established in the previous paragraph, the data protection authority shall also propose the initiation of disciplinary proceedings when there are sufficient indications for it. In this case, the procedure and the sanctions to be applied shall be those established in the legislation on the disciplinary or sanctioning regime that is applicable.

Likewise, when the infringements are attributable to authorities and executives, and the existence of technical reports or recommendations for processing that have not been duly addressed is proven, the resolution imposing the sanction shall include a reprimand naming the responsible position and shall order the publication in the Official State Gazette or the corresponding autonomous gazette.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

12/17

4. The resolutions related to the measures and actions referred to in the previous paragraphs shall be communicated to the data protection authority.

5. The actions carried out and the resolutions issued under this article shall be communicated to the Ombudsman or, where applicable, to the analogous institutions of the autonomous communities.”

In light of the facts presented, it is considered appropriate to impose a sanction on the City Council for the violation of Article 5.1(f) of the GDPR, classified in Article 83.5 of the GDPR. The sanction to be imposed is the declaration of infringement.

VII

Article 32 of the GDPR

Article 32 “Security of processing” of the GDPR establishes:

“1. Taking into account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the risks of varying likelihood and severity for the rights and freedoms of natural persons, the controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, which may include, among others:

a) the pseudonymization and encryption of personal data;

b) the ability to ensure the ongoing confidentiality, integrity, availability, and resilience of processing systems and services;

c) the ability to restore the availability and access to personal data quickly in the event of a physical or technical incident;

d) a process for regularly testing, assessing, and evaluating the effectiveness of the technical and organizational measures to ensure the security of processing.

2. In assessing the appropriateness of the level of security, particular consideration shall be given to the risks presented by the processing of data, in particular as a result of the accidental or unlawful

destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

3. Adherence to an approved code of conduct pursuant to Article 40 or to an approved certification mechanism pursuant to Article 42 may serve as an element to demonstrate compliance with the requirements set out in paragraph 1 of this article.

4. The controller and the processor shall take measures to ensure that any person acting under the authority of the controller or the processor and having access to personal data only processes such data in accordance with...

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

13/17

instructions of the controller, unless required to do so under Union or Member State law.”

Article 32 does not establish static security measures; it is up to the controller to determine the necessary security measures to ensure the confidentiality, integrity, and availability of personal data.

The principle of data security requires the application of appropriate technical or organizational measures in the processing of personal data to protect such data against unauthorized or unlawful access, use, modification, disclosure, loss, destruction, or accidental or unlawful damage. In this regard, security measures are key to ensuring the fundamental right to data protection. The existence of the fundamental right to data protection is not possible if the confidentiality, integrity, and availability of such data cannot be guaranteed.

It should not be forgotten that, in accordance with Article 32.1 of the GDPR, the technical and organizational measures to be applied to ensure a level of security appropriate to the risk must take into account the state of the art, the costs of implementation, the nature, scope, context, and purposes of the processing, as well as the varying probability and severity of risks to the rights and freedoms of natural persons.

In this sense, it is important to note that the activity of the respondent involves the processing of numerous personal data (of citizens residing in the municipality and its employees) continuously. Therefore, due to the activity it engages in and the personal data it processes, it is obliged to conduct a risk analysis and implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk of its activity for the rights and freedoms of individuals.

In the present case, it cannot be asserted that the City Council had the appropriate measures in place to prevent the incident, as there would have been an unauthorized communication of personal data of the claimant related to the filing of a complaint with the Court of Auditors, which highlights the lack of adequate technical and organizational measures or the non-compliance or ineffectiveness of those that were in place.

In light of the above and in accordance with the available evidence, it is considered that the known facts constitute an infringement attributable to the City Council for violation of Article 32 of the GDPR.

VIII

Classification of the infringement of Article 32 of the GDPR

The aforementioned infringement of Article 32 of the GDPR constitutes the commission of the infringements classified in Article 83.4 of the GDPR, which under the heading “General conditions for the imposition of administrative fines” states:

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

14/17

“Violations of the following provisions shall be subject to administrative fines of up to EUR 10,000,000 or, in the case of an enterprise, an amount equivalent to a maximum of 2% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the obligations of the controller and the processor under Articles 8, 11, 25 to 39, 42, and 43; (...)" In this regard, the LOPDGDD, in its Article 71 "Infringements" establishes that: "Acts and conduct referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements."

For the purposes of the limitation period, Article 73 "Infringements considered serious" of the LOPDGDD indicates:

"Based on what is established in Article 83.4 of Regulation (EU) 2016/679, the following are considered serious and will be subject to a two-year limitation period:

f) The failure to adopt those technical and organizational measures that are appropriate to ensure a level of security appropriate to the risk of the processing, in the terms required by Article 32.1 of Regulation (EU) 2016/679.

IV

Proposal for sanction for the infringement of Article 32 of the GDPR

Without prejudice to the provisions of Article 83.5 of the GDPR, the aforementioned article provides in its paragraph 7 the following:

"7. Without prejudice to the corrective powers of the supervisory authorities under Article 58, paragraph 2, each Member State may establish rules on whether and to what extent administrative fines may be imposed on authorities and public bodies established in that Member State."

For its part, Article 77 "Applicable regime for certain categories of controllers or processors" of the LOPDGDD provides the following:

"1. The regime established in this article shall apply to the processing for which they are responsible or for which they are processors:

b) The General Administration of the State, the Administrations of the autonomous communities, and the entities that make up the Local Administration.

2. When the controllers or processors listed in paragraph 1 commit any of the infringements referred to in Articles 72 to 74 of this organic law, the competent data protection authority shall issue

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

15/17

Resolution declaring the infringement and establishing, where applicable, the measures that should be adopted to cease the conduct or correct the effects of the infringement that may have been committed, with the exception of that provided for in Article 58.2.i of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016.

The resolution shall be notified to the data controller or processor, to the hierarchical body to which it is subordinate, where applicable, and to the affected parties who had the status of interested parties, where applicable.

3. Without prejudice to the provisions of the previous paragraph, the data protection authority shall also propose the initiation of disciplinary actions when there are sufficient indications for it. In this case, the procedure and the sanctions to be applied shall be those established in the legislation on disciplinary or sanctioning regimes that apply.

Furthermore, when the infringements are attributable to authorities and executives, and it is proven that there are technical reports or recommendations for processing that have not been duly addressed, the resolution imposing the sanction shall include a reprimand naming the responsible official and shall order publication in the corresponding Official State or regional Gazette.

4. The resolutions related to the measures and actions referred to in the previous paragraphs must be communicated to the data protection authority.

5. The actions carried out and the resolutions issued under this article shall be communicated to the Ombudsman or, where applicable, to the analogous institutions of the autonomous communities.

In light of the facts presented, it is considered appropriate to impose a sanction on the City Council for

the violation of Article 32 of the GDPR, classified in Article 83.4 of the GDPR. The sanction to be imposed is the declaration of infringement.

X

Imposition of measures

Having confirmed the infringements, it is appropriate to impose on the responsible party the adoption of adequate measures to adjust its actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period...".

Specifically, the adoption of adequate measures aimed at ensuring the proper confidentiality of personal data and that, in general, the personal data processing carried out complies with the applicable data protection regulations.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

16/17

It is warned that failure to comply with the possible order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, and such conduct may lead to the initiation of further administrative sanctioning proceedings.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection

RESOLVES:

FIRST: TO DECLARE that the CITY COUNCIL OF JEREZ DE LOS CABALLEROS, with NIF P0607000G, has infringed the provisions of Articles 5.1.f) and 32 of the GDPR, infringements classified, respectively, in Articles 83.5 and 83.4 of the GDPR.

SECOND: TO ORDER the CITY COUNCIL OF JEREZ DE LOS CABALLEROS, with NIF P0607000G, that pursuant to Article 58.2.d) of the GDPR, within 2 months from the date this resolution becomes final and enforceable, to prove that it has complied with the proposed measures, consisting of the adoption of adequate measures aimed at ensuring the proper confidentiality of personal data and that, in general, the personal data processing carried out complies with the applicable data protection regulations.

THIRD: TO NOTIFY this resolution to the CITY COUNCIL OF JEREZ DE LOS CABALLEROS.

FOURTH: TO COMMUNICATE this resolution to the Ombudsman, in accordance with the provisions of Article 77.5 of the LOPDGDD.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the final resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested

party must formally communicate this fact by means of

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
17/17

Written communication addressed to the Spanish Agency for Data Protection, submitted through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. The documentation that certifies the effective filing of the contentious-administrative appeal must also be submitted to the Agency. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the precautionary suspension to be concluded.

938-16012024

Mar España Martí
Director of the Spanish Agency for Data Protection
C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es